

		Plaintiffs appear to have alleged Defendants’ failure to perform the “scope of work” to support the elements of a misrepresentation made without a reasonable ground for believing it to be true and an intent to deceive. Although Plaintiffs argue they “could have, and would have, asserted their claims against BT even if no Engagement Letter existed,” (Opp’n at p. 10), what Plaintiffs “could have” or “would have” done is immaterial. All that is relevant is what was actually alleged. And, as shown above, Plaintiffs did, in fact, rely on duties or obligations Defendants allegedly owed via the engagement letters in formulating their claims. Thus, the Court finds Defendants have met their burden of establishing the existence of a valid arbitration agreement between the parties on the basis of equitable estoppel. Finally, because of the “clear” and “unmistakable” delegation clause in the arbitration provision, the Court finds it is the province of the arbitrators to determine whether Plaintiffs’ claims are not subject to arbitration based on the defense of unconscionability. ((<i>B.D. v. Blizzard Entertainment, Inc.</i> (2022) 76 Cal.App.5th 931, 957 accord <i>Henry Schein, Inc. v. Archer and White Sales, Inc.</i> (2019) 586 U.S. 63, 68.) This is action stayed pending final resolution of the arbitration. (Code Civ. Proc., § 1281.4.) In light of the ruling, Defendants’ demurrer, (which was made in the alternative), is taken off calendar. The Court sets an ADR review conference for February 4, 2025, at 9:00 am in Department N18. Defendants are ordered to give notice of the ruling.
12.	2024-1377163 Memarzadeh vs. Arnold	<i>Continued from 9/4/24.</i> Defendants Larry Millard Arnold’s, Larry M. Arnold, P.C.’s, and Cummins & White, LLP’s motion to compel arbitration of Plaintiff Maher Memarzadeh’s claims is granted. In this matter, Plaintiff alleges causes of action for (1) breach of written contract, (2) breach of fiduciary duty, (3) breach of the implied covenant of good faith and fair dealing and (4) negligence/legal malpractice in connection with Defendants’ representation of him in an underling malpractice case against his former attorney, Francisco Gutierrez.

	Plaintiff signed an “Engagement Agreement” in the underlying action dated 12/19/22 which contains an arbitration provision, stating in part: A. Other than a dispute over the amount of fees or costs due and owing, <u>any dispute concerning the rights of any of the parties hereto, including, but not limited to, any dispute over alleged malpractice</u>, shall, if any such dispute cannot be resolved between the parties hereto, be decided by arbitration by a retired judge of the Superior Court to be agreed upon by the parties. Client understands that it may well be entitled to a jury trial as to any claim against Lawyers for malpractice or for other claims and that Client waives hereby any such right. (Gilbert Decl., Ex. A. [emphasis added]) The Court finds that the arbitration agreement encompasses Plaintiff’s claims. The allegations in Plaintiff’s Complaint constitute a “dispute concerning the rights of ...the parties,” including a “dispute over alleged malpractice.” In opposition, Plaintiff argues that his appeal of the underlying case (Maher Memarzadeh vs. Francisco Arturo Gutiérrez, et. al.; San Francisco County Superior Court Case Number: CGC-21-596413) requires that this matter be stayed because the rulings could be conflicting, pursuant to Code Civ. Proc., § 1281.2(c). (Opposition, pg. 4.) It appears that the pending appeal is based on an order for termination sanctions resulting from a failure to obey discovery orders. Plaintiff is not claiming that Defendants were his counsel when the underlying case was dismissed. In fact, in reply, Defendants state that they were only Plaintiff’s counsel for less than two months, substituting out in February 2023 well before the case was dismissed in June 3034. Under Code Civ. Proc., § 1281.2(c), Plaintiff must show there is a possibility of conflicting rulings. He does not. A decision as to whether or not the San Francisco Court properly granted the motion for terminating sanctions does not have the potential to conflict with the outcome of this case regarding whether Defendants breached their Engagement
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		Agreement with Plaintiff and were negligent in their representation. Plaintiff does not assert any other arguments, such as that the arbitration agreement is unconscionable or has been waived by Defendants. As a result, he fails to meet his burden to show that the agreement is unenforceable. Accordingly, based on the foregoing, the Court grants Defendants' motion to compel arbitration of Plaintiff's claims. This matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The hearing on Plaintiff's motion to stay set for 11/20/24 is vacated. The Court sets a status conference on January 21, 2025 in Dept. N18. Defendants shall give notice.
13.	2023-1354879 Witthoeft vs. Lares	<i>The Court will first address the OSC re: dismissal for FTP. In the event of denial only, the tentative of 9/4/24 (appearing below) is operative.</i> Motion to Compel Further Responses to Form Interrogatories Motion to Compel Further Responses to Requests for Production The unopposed motion by Defendants California Automobile Insurance Company, erroneously sued as Mercury Insurance, and Patty Lares dba Lares Insurance (collectively, "Defendants") for an order compelling Plaintiff Karin Witthoeft ("Plaintiff") to provide further responses to Defendants' Form Interrogatories, Set One, and request for sanctions is granted in part and denied in part. Defendants' motion to compel further responses to Defendants' Request for Production, Set One and request for sanctions is denied. Defendants' motions are timely filed. (Code Civ. Proc., §§ 2030.300, subd. (c) and 2031.310, subd. (c); Harvey Decl., ¶ 5, Exhibit C.) Defendants' motion to compel further responses to form interrogatory numbers 50.1 and 50.3 is denied. Defendants did not show Defendants met and conferred with Plaintiff regarding these two interrogatories. (Code Civ. Proc., §§ 2030.300, subd. (b); Harvey Decl., ¶¶ 6-8, Exhibit D.)